

REQUEST TO THE STATE BUREAU OF IDENTIFICATION - DELAWARE Sec. 1017A AUTOMATIC
EXPUNGEMENT THAT DID NOT HAPPEN

TO: The Delaware State Bureau of Identification (SBI). The compiled Delaware profile records a
telephone number for mandatory-expungement requests: 302-739-5884.

Exact office and postal address, confirmed with that office:

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FROM: Maria-Alejandra O'Shaughnessy-Whitfield

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DATE OF BIRTH: 1968-12-31

REQUEST ABOUT A RECORD ELIGIBLE FOR AUTOMATIC EXPUNGEMENT UNDER 10 DEL.
C. Sec. 1017A

A. WHY I AM WRITING, AND WHAT THE COMMITTED RECORD ESTABLISHES

The compiled Delaware profile records how this route works: "None (automatic, Sec. 4373A)

Mandatory-eligible cases are expunged by the SBI monthly with no filing."

It records what to do when it has not happened: "SBI mandatory-expungement request Contact the SBI
(302-739-5884) to request mandatory expungement; if eligible, SBI sends a letter with instructions and
any fees."

The committed route contract records the same boundary: "Sec. 1017 favorable-termination matters are
mandatory with no elapsed wait; Sec. 1017A eligible records run through the automatic program with a
petition or correction path only where the automatic process did not occur. The three-year value here is
the lowest discretionary Sec. 1018 branch; the five- and seven-year branches turn on the offense category,
which the intake must collect."

This request is therefore made to the agency that runs the programme, and not to a court. No court
petition is enclosed, because the committed records do not describe one as the first step here.

B. MY MATTER

[C1 - adjudication this request is about] Which juvenile adjudication is this request about? Give the court,
the case number and the date.

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[C2 - recorded eligibility category] Why do you believe this record was eligible for the automatic
programme? The committed contract records the eligibility categories; state which one you believe

applies.

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.....

[C3 - how the record was checked] How did you find out that the record is still there? Give the date you checked and what you looked at.

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[C4 - what is being asked of the office] What are you asking this office to do?

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.....

C. WHAT I AM ASKING FOR

I am asking the office named above to check whether this record was eligible for the automatic programme, to tell me what it finds, and to expunge it if it is eligible. If the office cannot act, I am asking it to tell me who can.

DATE SIGNATURE

(The person named above signs and dates this request personally. Nothing on this page is signed or dated for them.)

Route:

obligation:runtime-contract-cohort:DE:juvenile-expungement-under-10-del-c-1017-1019-1017a:section_1
017a_automatic_failure_correction

WHAT THIS ROUTE IS, AND WHY THERE IS NO COURT PETITION IN THIS PACKET

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

DELAWARE Sec. 1017A AUTOMATIC JUVENILE EXPUNGEMENT, AND WHAT TO DO WHEN IT HAS NOT HAPPENED

WHAT THIS ROUTE IS, AND WHO RUNS IT

THE PARTICIPANT DOES NOT FILE THIS ONE. The compiled Delaware profile records it plainly: "None (automatic, Sec. 4373A) Mandatory-eligible cases are expunged by the SBI monthly with no filing."

The committed route contract records the same thing from the other side: "Sec. 1017 favorable-termination matters are mandatory with no elapsed wait; Sec. 1017A eligible records run through the automatic program with a petition or correction path only where the automatic process did not occur. The three-year value here is the lowest discretionary Sec. 1018 branch; the five- and seven-year branches turn on the offense category, which the intake must collect."

So the ordinary case is that nothing is filed and nothing is paid, and the record is expunged by the agency on its own schedule. This packet exists for the case where that did not happen.

Who runs it: The Delaware State Bureau of Identification runs the automatic programme. The compiled profile records that mandatory-eligible cases are expunged by the SBI monthly with no filing, and records a telephone number - 302-739-5884 - for a mandatory-expungement request.

WHAT YOU DO

- Check first, before doing anything else. If the record has already gone, there is nothing to ask for.
- If it is still there, use the request page in this packet, or telephone the SBI on 302-739-5884. The compiled profile records that if the person is eligible, the SBI sends a letter with instructions and any fees.
- Keep what you send and what you get back. If a court step becomes necessary later, that record is what shows the automatic route was tried.

WHAT YOU DO NOT DO

- Do not file a court petition as your first step on this branch. The committed records describe the Sec. 1017A route as automatic, and describe a petition or correction path ONLY where the automatic process did not occur. Filing first asks a court to do what an agency does without being asked.
- Do not use the Sec. 1018 discretionary petition for this. That is a different branch with its own family, and it is for a record the automatic programme was never going to reach.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Nothing in this route is a court filing, so no filing fee arises from it. What the compiled record does state

about money is this: "SBI mandatory-expungement request Contact the SBI (302-739-5884) to request mandatory expungement; if eligible, SBI sends a letter with instructions and any fees." The record states no amount, so the SBI is the office that tells you whether any fee applies, and 302-739-5884 is the number the record gives for reaching it.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

Nothing is served, because nothing is filed. The compiled record describes a request to an agency and a letter back from it.

WHEN TO STOP AND GET HELP INSTEAD

- the SBI says the record is not eligible and you believe it is;
- the SBI does not answer, or answers and nothing changes;
- the record is one the Sec. 1017 mandatory branch or the Sec. 1018 discretionary branch reaches instead - each is a different route with its own family;
- you are told a court petition is now needed, which is the point at which this stops being an agency question;
- any immigration question is involved.

WHERE TO GO WHEN SELF-HELP STOPS

The compiled Delaware profile gives one contact for this route by name and number: the State Bureau of Identification, 302-739-5884. Where the answer from that office does not resolve it, the question becomes a legal one and belongs with a lawyer or a legal-aid office.

Route:

obligation:runtime-contract-cohort:DE:juvenile-expungement-under-10-del-c-1017-1019-1017a:section_1017a_automatic_failure_correction